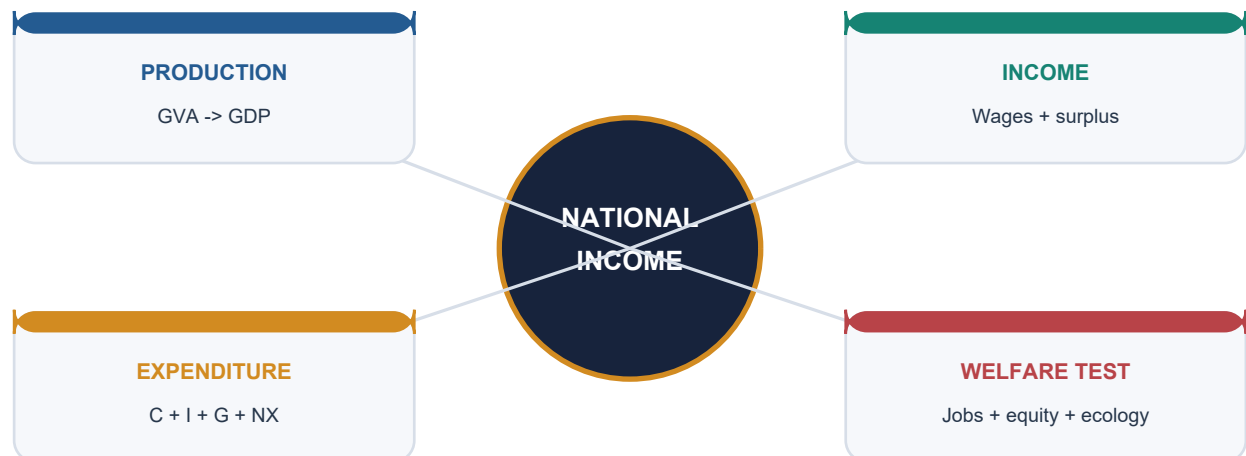


COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 28 - UPSC and SPSC - Complete Topic Package

Control date: 19 August 2026, Asia/Kolkata **Tags:** [FACT] directly supported by a named constitutional, statutory, judicial, official or audited local source; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive legal or institutional control; [LIMIT] boundary or qualification preventing overstatement. **Answer discipline:** claim -> named evidence -> analysis -> qualification. **Scope:** constitutional rationale and evolution; Articles 315-323 article by article; UPSC, SPSC and Joint State Public Service Commission; composition, appointment, tenure, removal and post-office restrictions; examinations and consultation; recruitment boundaries; independence and accountability; judicial review; examination integrity; current controls and reforms.

Package method, source priority and current legal control

- [FACT] Local source order followed: basic/UPSC-and-SPSC.md -> advanced/28_UPSC-and-SPSC.md -> basic/Public-Services.md, basic/Administrative-Tribunals.md, basic/Statutory-Regulatory-and-Quasi-Judicial-Bodies.md, judiciary and reservation owners only where a boundary required it -> local OCR-searchable *Indian Polity* by M. Laxmikanth -> all recent routed-PYQ and integration-audit ledgers searched precisely for Public Service Commission, Article 315, Article 320, SPSC and Joint State Public Service Commission -> official constitutional, statutory, regulatory, judicial, UPSC and SPSC material.
- [FACT] Structural and validation references only: Polity 25, 26 and 27 complete packages. Their subject content has not been imported.
- [CURRENT] The official Legislative Department consolidation checked is *The Constitution of India [As on 1 May 2024]*. Articles 315-323 were controlled clause by clause against that text.
- [CURRENT] The India Code consolidation of the **Public Examinations (Prevention of Unfair Means) Act, 2024**, checked as on 21 July 2025, records commencement on **21 June 2024** and expressly lists examinations conducted by the **Union Public Service Commission** in its Schedule.
- [CURRENT] The **Public Examinations (Prevention of Unfair Means) Rules, 2024**, G.S.R. 342(E), were notified on 23 June 2024 and published on 24 June 2024. They prescribe institutional roles, computer-based-test standards, incident reporting and monitoring architecture.
- [CURRENT] G.S.R. 203(E), dated 15 March 2024, amended the Union Public Service Commission (Exemption from Consultation) Regulations, 1958 for specified Group A and Group B posts up to pay level 13A filled by named deputation/re-employment, short-term-contract, absorption or composite methods.
- [LIMIT] That 2024 amendment is **not** a general constitutional exemption called "lateral entry". Every lateral recruitment must be analysed through the post's recruitment rules, level, mode of filling, reservation law, the operative consultation regulations and the actual role assigned to the UPSC.
- [CURRENT] Official UPSC and State PSC portals continue to use examination calendars/programmes, results pages, recruitment notices, contact/grievance channels, RTI disclosures and conference/newsletter mechanisms. These are transparency instruments, not substitutes for lawful selection rules or reasoned remedies.
- [LIMIT] This package does not freeze current chairperson/member names, vacancies, candidate counts, annual calendars or changing examination statistics.
- [LIMIT] No adopted constitutional "collegium" for PSC appointments was located. Proposals for broader selection committees are reform arguments, not current law.

Authoritative control set

Source	Named evidence used	Control supplied
Constitution of India, Part XIV, Chapter II	Articles 315-323	complete constitutional architecture
Constitution, Articles 14, 16(4), 309-312, 323A and 335	equality, reservation, service rules, All-India Services and tribunals	recruitment boundaries
Public Examinations Act, 2024, India Code	sections 2-18 and Schedule	UPSC coverage, unfair means, offences and monitoring
Public Examinations Rules, 2024	rules 3-9	CBT standards, reporting and monitoring
UPSC Exemption from Consultation Regulations, 1958, amended 15 March 2024	specified consultation exclusions	current consultation boundary
<i>State of U.P. v. Manbodhan Lal Srivastava</i> (1957)	Article 320 consultation is directory, not mandatory	non-consultation doctrine
<i>Ashok Kumar Yadav v. State of Haryana</i> (1985)	bias and arbitrariness in PSC selection	fair-selection doctrine
<i>Shankarsan Dash v. Union of India</i> (1991)	select-list inclusion creates no indefeasible appointment right	appointment boundary
<i>K. Manjusree v. State of Andhra Pradesh</i> (2008)	selection criteria cannot be introduced after the process	rules-of-the-game doctrine
<i>M.V. Thimmaiah v. UPSC</i> (2007)	limited review of expert selection recommendations	judicial-restraint doctrine
<i>Tej Prakash Pathak v. Rajasthan High Court</i> , 2024 INSC 847	Constitution Bench restatement of recruitment-rule stability and non-arbitrariness	current doctrinal control
Official UPSC/SPSC portals	calendars, results, contact/RTI and conference material	current transparency examples

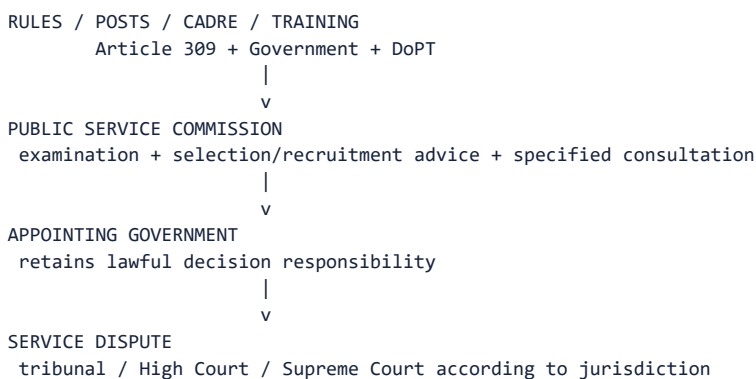
Roadmap

Stage	Coverage	Exam outcome
Foundation	rationale, evolution and Part XIV placement	explain why recruitment is constitutionalised
Institutional design	UPSC, SPSC and Joint Commission	solve source, appointment and federal traps
Membership	composition, experience rule, term and acting chair	master Article 316
Independence	removal, suspension, service conditions and post-office bars	master Articles 317-319
Functions	examinations, joint recruitment and consultation	master Article 320
Extension and reporting	Articles 321-323	connect advice with accountability
Recruitment boundary	executive, DoPT, reservation, lateral entry and tribunals	prevent ownership overreach
Courts	limited review, stable rules and no appointment right	write accurate case-law answers
Integrity and reform	public-examination law, digital security and SPSC risks	add current value without speculation
Workbook	audited PYQ outcome, 48 rotated MCQs and eight solved Mains	convert doctrine into marks

Scope ownership and cross-links

This package owns	Cross-link owner	Boundary
Public Service Commissions under Articles 315-323	Public Services, Articles 308-314	Commission design is distinct from service tenure
examinations and constitutional consultation	DoPT / Ministries under Article 309 rules	UPSC is not the whole personnel administration
PSC recommendation and selection review	Supreme Court / High Court owners	courts review legality, not comparative merit as an appellate board
reservation consultation exception	Fundamental Rights / special-class commissions	Article 320(4) is not a general anti-reservation rule
service-dispute recruitment interface	Administrative Tribunals	CAT adjudicates covered disputes; it does not recruit
public-examination integrity law as applied to UPSC	Internal Security / criminal-law owners	this package owns institutional application, not every offence detail
lateral recruitment consultation boundary	Governance / Public Services	no claim that every lateral post bypasses or must use UPSC
SPSC integrity and federal design	Governor / Centre-State Relations	general gubernatorial office doctrine remains with its owner

Visual 1 - Ownership map



Caption: The Commission guards entry and specified personnel decisions; it does not absorb the executive, cadre authority or judiciary.

PART I - Complete foundation, core and advanced learning session

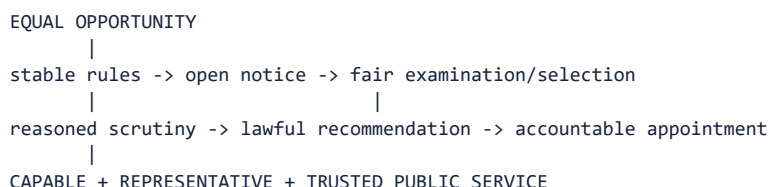
01. Why merit recruitment is constitutionalised

[FACT] A modern State needs permanent officials selected through criteria that do not simply reproduce patronage, family connection, party loyalty or personal favour.

[ANALYSIS] A Public Service Commission is a **constitutional trust institution**: it separates the political executive's legitimate power to govern from the temptation to distribute public posts as political rewards.

[LIMIT] Merit is not identical to one examination score. Constitutional recruitment must reconcile competence, equal opportunity, reservation, suitability, integrity, accessibility and the requirements of each service.

Visual 2 - Democratic merit chain



Caption: Merit legitimacy depends on the whole process, not merely the final rank.

02. Constitutional rationale: neutrality without executive paralysis

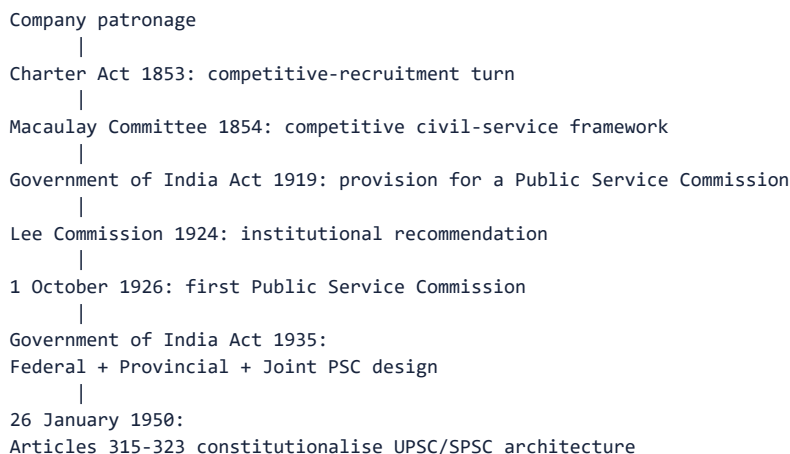
Visual 3 - Design balance

Constitutional need	PSC response	Necessary qualification
neutral recruitment	external constitutional commission	executive still creates posts and appoints
professional expertise	examinations and expert selection	courts retain legality review
equal opportunity	standardised and public procedure	reservation and accommodation remain applicable
protection from retaliation	difficult removal and charged expenses	appointment is still executive
democratic accountability	annual reports and non-acceptance memorandum	advice is generally not binding

[ANALYSIS] The Constitution chose **insulated advice**, not an unelected personnel government. The Commission must be strong enough to resist patronage but not so dominant that elected government loses responsibility for administration.

03. Evolution from patronage to constitutional commission

Visual 4 - Evolution timeline



[FACT] The local OCR-searchable Laxmikanth chapter and official institutional history trace the Commission lineage through the 1919 and 1935 Acts and the first Commission in 1926.

[ANALYSIS] The constitutional innovation was not merely an examination body. It was the conversion of a colonial recruitment mechanism into a federal, equality-bound and publicly accountable institution.

[LIMIT] Competitive recruitment under colonial rule did not itself create social equality; access and representation remained restricted.

04. Part XIV master map

Visual 5 - Services and Commission spine

Provision	Core subject	Owner
308	interpretation	Public Services
309	recruitment and service-condition law/rules	Public Services / executive
310	doctrine of pleasure	Public Services
311	dismissal safeguards	Public Services
312	All-India Services	Public Services
315	UPSC, SPSC and Joint Commission	this package
316	appointment and term	this package
317	removal and suspension	this package
318	member/staff regulations	this package
319	post-tenure office restrictions	this package
320	functions and consultation	this package
321	legislative extension	this package
322	charged expenses	this package
323	annual reports and memoranda	this package
323A	administrative tribunals	Tribunals owner

Prelims rule: Articles **315-323** are the Commission chapter; do not mix them with Article 323A tribunals merely because numbering is adjacent.

05. Article 315: three institutional forms

[FACT] Article 315(1) requires a Public Service Commission for the Union and one for each State, subject to the rest of the Article.

[FACT] Article 315(2) allows two or more States to agree on one Commission. Each relevant State legislature must pass the required resolution; Parliament may then **by law provide for the appointment** of a Joint State Public Service Commission.

[ANALYSIS] A Joint Commission is constitutionally contemplated but activated through a parliamentary statute. Calling it simply “statutory” is incomplete if that suggests an extra-constitutional body; calling it automatically existing “directly under Article 315” is also incomplete.

Visual 6 - Constitutional source versus creating instrument

CONSTITUTION, ARTICLE 315(2)
authorises a Joint State PSC
|
State legislatures pass resolutions
|
PARLIAMENT ENACTS LAW
providing for appointment and incidental matters
|
JOINT COMMISSION OPERATES
within Articles 315-323

Caption: The office has a constitutional foundation and a statutory creating instrument.

06. Article 315(4): UPSC assistance to a State

[FACT] The UPSC may, on a request by a State's Governor and with the President's approval, agree to serve all or any of that State's needs.

[LIMIT] This is not the same as:

1. creating a Joint State PSC under Article 315(2);
2. the Article 320(2) duty to assist two or more States with a joint recruitment scheme for services requiring special qualifications; or
3. permanently abolishing the State Commission.

Visual 7 - Three easily confused cooperative devices

Device	Trigger	Institution	Result
Joint State PSC, Art 315(2)	State legislative resolutions + parliamentary law	one Joint Commission	serves group of States
UPSC serves a State, Art 315(4)	Governor request + President approval + UPSC agreement	UPSC	serves all/some State needs
joint recruitment scheme, Art 320(2)	request by two or more States	UPSC assistance	scheme for specially qualified service

07. UPSC, SPSC and Joint Commission compared

Visual 8 - Institutional comparison matrix

Dimension	UPSC	SPSC	Joint State PSC
constitutional basis	Art 315(1)	Art 315(1)	Art 315(2)
operational creation	Constitution	Constitution	parliamentary law after State resolutions
chair/members appointed by	President	Governor	President
removal authority	President	President	President
suspension after SC reference	President	Governor	President
service-regulation authority, Art 318	President	Governor	President
age ceiling	65	62	62
annual report	President	Governor	Governor of each served State for that State
charged fund	CFI	State Consolidated Fund	law/constitutional arrangement must be read with served design

[LIMIT] For Article 322, the text expressly names Union and State Commissions. A Joint Commission's financial arrangements should be stated from its creating law rather than guessed.

08. Article 316: who appoints

[FACT] The President appoints the Chairman and other members of the Union Commission and a Joint Commission. The Governor appoints the Chairman and other members of a State Commission.

[LIMIT] Appointment and removal are intentionally asymmetric for an SPSC: **Governor appoints; President removes.**

Visual 9 - Appointment/removal trap board

UPSC: President appoints ---- President removes
SPSC: Governor appoints ---- President removes
Joint PSC: President appoints ---- President removes

Caption: The State executive initiates SPSC membership but cannot use removal as retaliation.

09. Composition and the one-half experience rule

[FACT] The Constitution does not fix the total strength of any Commission.

[FACT] Under the proviso to Article 316(1), **as nearly as may be one-half** of the members of every Commission must, at their appointment dates, have held office for at least ten years under the Government of India or a State.

[FACT] Pre-Constitution service under the Crown in India or the Government of an Indian State counts toward the ten years.

[LIMIT] The Constitution prescribes no universal educational degree, judicial qualification or civil-service rank for every member.

Visual 10 - Composition test

Question	Correct test	Trap
fixed number?	no constitutional number	do not memorise a changing “usual” strength
all members career officials?	no	only near-half ten-year rule
exactly 50% mathematically?	“as nearly as may be”	do not flatten the phrase
ten years immediately preceding?	text says held office for at least ten years	do not add continuity language
pre-1950 service counted?	yes, as specified	often omitted in summaries

10. Tenure, age and commencement calculations

[FACT] Article 316(2) gives a term of **six years from the date the member enters upon office**, or until the age ceiling, whichever occurs earlier.

[FACT] The ceiling is 65 for the Union Commission and 62 for a State or Joint Commission.

Visual 11 - Tenure calculation flow

```
DATE OF ENTRY UPON OFFICE
|
+ 6 years
|
compare with age ceiling
|
UPSC: age 65
SPSC/Joint: age 62
|
EARLIER EVENT ENDS TENURE
```

[LIMIT] Appointment date, notification date and date of entering office need not always be identical. Use the constitutional phrase when a commencement calculation matters.

11. Resignation and reappointment

[FACT] A UPSC or Joint Commission member resigns by writing addressed to the President. An SPSC member resigns by writing addressed to the Governor.

[FACT] Article 316(3) makes a person, on expiry of the term, ineligible for reappointment **to that office**.

[ANALYSIS] “No second term” is a useful shorthand only if qualified: Article 319 still permits specified movement to a different eligible Commission office.

Visual 12 - Exit routes

Exit	Constitutional route	Consequence
expiry	six years/age, whichever earlier	no reappointment to same office
resignation	President for UPSC/Joint; Governor for SPSC	post-office restrictions apply
removal	Article 317	constitutional process
elevation/other PSC office	only if Article 319 permits	not a reappointment to same office

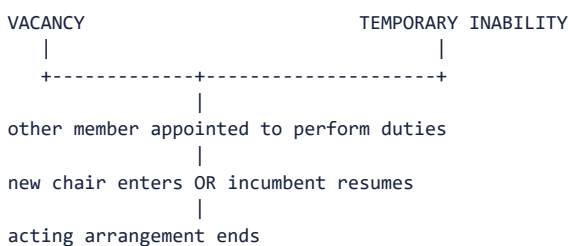
12. Acting Chairman under Article 316(1A)

[FACT] If the Chair's office is vacant, or the Chair cannot perform duties because of absence or another reason, another member may be appointed to perform the duties.

[FACT] The appointing authority is the President for the Union/Joint Commission and the Governor for an SPSC.

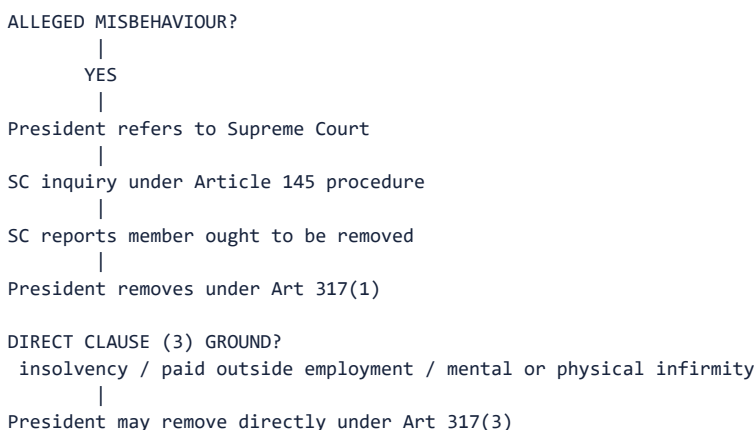
[FACT] The arrangement lasts until the new Chair enters upon duties or the existing Chair resumes.

Visual 13 - Acting-chair trigger



13. Article 317: removal is not one undifferentiated process

Visual 14 - Removal decision tree



[FACT] Only the President removes a Chair or member of any Public Service Commission.

[LIMIT] Do not import the parliamentary-address process used for judges into Article 317.

14. Misbehaviour and Supreme Court inquiry

[FACT] Under Article 317(1), removal for misbehaviour follows a Presidential reference and Supreme Court inquiry. Removal follows where the Court reports that the member ought to be removed on that ground.

[FACT] Article 317(4) deems a member guilty of misbehaviour if the member is concerned or interested in a government contract/agreement or participates in its profit or benefit, except as a member in common with other members of an incorporated company.

Visual 15 - Misbehaviour architecture

Element	Constitutional control	Why it matters
allegation	not enough by itself	protects tenure
reference	President	central constitutional trigger
inquiry	Supreme Court	independent fact/legal assessment
contract interest	deemed misbehaviour, subject to company exception	controls conflict of interest
final order	President after Court report	formal removal authority

15. Clause (3) direct Presidential removal grounds

[FACT] Article 317(3) separately authorises Presidential removal where the member:

1. is adjudged insolvent;
2. engages during the term in paid employment outside official duties; or
3. is, in the President's opinion, unfit by reason of infirmity of mind or body.

Visual 16 - Grounds must not be flattened

Ground	SC inquiry under 317(1)?	Decision route
misbehaviour	yes	reference -> inquiry -> report -> President
insolvency	no separate 317(1) inquiry required	President under 317(3)
paid outside employment	no separate 317(1) inquiry required	President under 317(3)
mental/physical infirmity	no separate 317(1) inquiry required	President under 317(3)
government-contract interest	deemed misbehaviour	317(1) route

16. Suspension during inquiry

[FACT] Once a reference has been made to the Supreme Court:

- the President may suspend a UPSC or **Joint Commission** Chair/member; and
- the Governor may suspend an **SPSC** Chair/member.

[FACT] Suspension lasts until the President acts after receiving the Supreme Court report.

Visual 17 - Suspension authority matrix

Commission	Who suspends after reference?	Who finally removes/acts?
UPSC	President	President
SPSC, including a State body such as Jharkhand PSC	Governor	President
Joint State PSC	President	President

Terminology caution: “JPSC” can mean Jharkhand Public Service Commission in current usage. A Jharkhand PSC is an SPSC, not the constitutional “Joint Commission”.

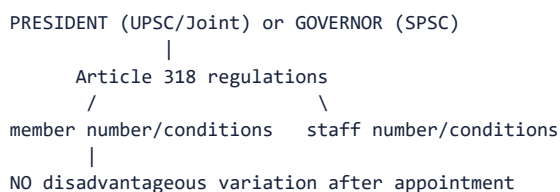
17. Article 318: regulations for members and staff

[FACT] The President for the Union/Joint Commission and the Governor for an SPSC may regulate:

1. the number of Commission members and their conditions of service; and
2. the number and conditions of service of Commission staff.

[FACT] A member's conditions of service cannot be varied to the member's disadvantage after appointment.

Visual 18 - Regulation power and safeguard



[LIMIT] The non-disadvantage proviso protects members; staff conditions remain governed by the applicable legal framework.

18. Article 319: exact post-tenure restrictions

Visual 19 - Four-office eligibility matrix

Former office	May become	Bar
UPSC Chair	no further government employment	Union or State government employment
SPSC Chair	UPSC Chair or UPSC member; Chair of another SPSC	every other Union/State government employment
UPSC member	UPSC Chair or Chair of an SPSC	every other Union/State government employment
SPSC member	UPSC Chair/member; Chair of same or another SPSC	every other Union/State government employment

[FACT] Article 319 differentiates each office; there is no single sentence accurately describing all four.

[LIMIT] Eligibility does not create a right to elevation.

[LIMIT] The text bars “employment” under government. A constitutional office must be analysed by its legal character; do not convert an unverified textbook case reference into a blanket proposition.

19. Article 316(3) and Article 319 read together

Visual 20 - Same office versus permitted progression

TERM EXPIRES

|

Art 316(3): no reappointment to THAT office

|

Art 319 asks whether a DIFFERENT PSC office is permitted

|

eligible progression only within the exact four-clause matrix

[ANALYSIS] The design reduces incentives to please the appointing executive for an ordinary government job while retaining limited institutional progression.

[LIMIT] Post-office bars do not cure appointment-stage influence; independence is a lifecycle problem.

20. Independence safeguards

Visual 21 - Safeguard shield

Safeguard	Article	Institutional effect
constitutional creation	315	ordinary executive cannot abolish core office
fixed tenure/age	316	predictable endpoint
removal only constitutionally	317	protection from retaliation
adverse service change barred	318	financial/service security
post-office restrictions	319	reduces favour-seeking
charged expenditure	322	non-votable financial protection
public reporting	323	makes rejected advice visible

[ANALYSIS] These safeguards are mutually reinforcing. Removal security without staff, finance, transparent appointments and operational integrity can still produce weak independence.

21. Independence limits

Visual 22 - Safeguard-limit matrix

Protection	Continuing vulnerability
hard removal	executive appoints members
charged expenditure	budget size and staff capacity still matter
service-condition protection	secretariat and technology dependence can persist
post-office bar	permitted PSC progression may still create incentives
constitutional consultation	advice is generally non-binding
annual reporting	delay or thin reasons can weaken accountability
expert selection	vacancies, delay or integrity failures can erode trust

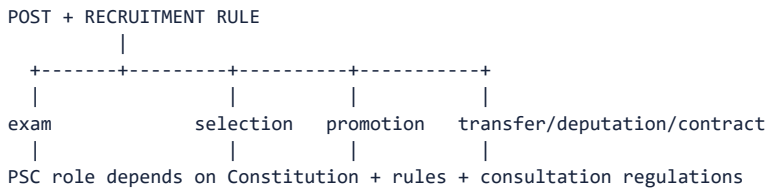
[ANALYSIS] The strongest GS-II conclusion is neither “completely independent” nor “mere department”. It is constitutionally insulated but operationally dependent on appointment quality, capacity, reason-giving and compliance conventions.

22. Article 320(1): examination duty

[FACT] It is the duty of the Union and State Commissions to conduct examinations for appointments to Union and State services respectively.

[LIMIT] Not every government appointment must be made through one common competitive examination. Recruitment rules may prescribe examination, direct recruitment by selection, promotion, transfer, deputation, contract or another lawful mode.

Visual 23 - Examination is a function, not a monopoly over every post



23. Article 320(2): joint recruitment assistance

[FACT] If requested by two or more States, the UPSC must assist them in framing and operating joint recruitment schemes for services requiring candidates with special qualifications.

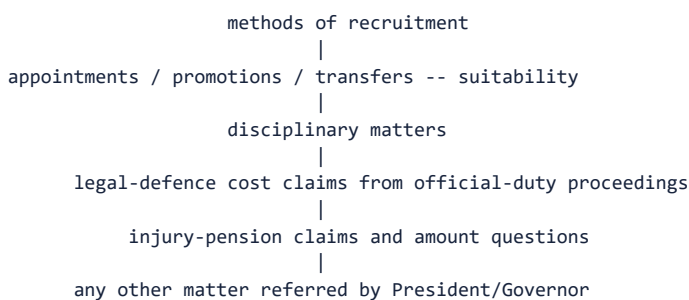
[LIMIT] This clause does not create a Joint State PSC.

Visual 24 - Article 315(2) versus Article 320(2)

Test	Art 315(2)	Art 320(2)
object	common Commission	common recruitment scheme
trigger	legislative resolutions + parliamentary law	requests by two or more States
institution created?	yes, Joint Commission	no new Commission
special qualifications required?	not textual condition	expressly relevant

24. Article 320(3): consultation catalogue

Visual 25 - Consultation wheel



[FACT] The Commission must advise on referred matters and the listed classes, subject to the constitutional exceptions and valid regulations.

25. Recruitment methods, principles and suitability

Visual 26 - Three different consultation questions

Question	Example	Commission role
method	exam, interview, promotion quota, deputation	advise on method
principle	seniority-cum-merit, qualifying standard, selection criteria	advise on governing principle
suitability	whether named candidates satisfy lawful criteria	assess within process

[ANALYSIS] A strong answer distinguishes designing the route, setting the rule and evaluating a candidate. Conflating them hides where arbitrariness occurred.

26. Disciplinary and claims consultation

[FACT] Article 320(3)(c) includes disciplinary matters affecting persons serving in a civil capacity, including memorials or petitions.

[FACT] Clauses (d) and (e) cover specified official-duty legal-cost claims and injury-pension claims.

Visual 27 - Less-tested Article 320 claims

Clause	Claim	Fund/decision concern
320(3)(d)	reimbursement of legal defence costs for official-duty proceedings	CFI/State fund
320(3)(e)	pension for injury sustained in civil service and amount	compensatory service claim

Prelims trap: Article 320 is wider than examinations and ordinary recruitment.

27. Consultation exceptions and Article 320(4)

[FACT] The proviso to Article 320(3) allows the President or Governor to make regulations specifying matters/classes/circumstances where consultation is unnecessary.

[FACT] Article 320(4) separately says clause (3) does not require consultation about:

1. the manner in which a provision under Article 16(4) may be made; or
2. the manner in which effect may be given to Article 335.

Visual 28 - Reservation nuance

ARTICLE 16(4) RESERVATION DESIGN

+

ARTICLE 335 EFFECT FOR SC/ST CLAIMS

|

Art 320(4): no required PSC consultation on the MANNER

|

NOT:

reservation is outside the Constitution

NOT:

PSC may disregard an operative roster/rule

NOT:

all SC/ST service questions are excluded from every process

[LIMIT] The familiar statement “UPSC is not consulted on reservations” must be written with this exact textual scope.

28. Regulations must face the legislature

[FACT] Article 320(5) requires consultation-exemption regulations to be laid for at least fourteen days before Parliament or the State legislature, as applicable, and subjects them to legislative modification, repeal or amendment during the relevant session.

Visual 29 - Delegated-accountability chain

President/Governor makes exemption regulation
|
laid for not less than 14 days
|
Parliament / State Legislature scrutinises
|
may modify, repeal or amend

[ANALYSIS] Exemption power is constitutionally permitted but not designed as invisible executive waiver.

29. Advice is generally advisory, not binding

[FACT] In *State of U.P. v. Manbodhan Lal Srivastava* (1957), the Supreme Court held Article 320(3) consultation directory rather than mandatory; non-consultation does not by itself invalidate the disciplinary action.

[LIMIT] “Directory” does not mean the executive may casually ignore the Commission. The judgment treated consultation as an important constitutional safeguard even while refusing automatic invalidation.

Visual 30 - Advisory does not mean irrelevant

COMMISSION ADVICE
|
government considers
|
+-----+
| |
| accept | reject
| |
| |
act constitutional reporting/reason mechanism where applicable

[ANALYSIS] The Commission influences through expertise, convention, transparency and political cost rather than a legal veto.

30. Article 323 turns advice into accountability

[FACT] The UPSC reports annually to the President. The President lays the report before each House of Parliament with a memorandum explaining cases where advice was not accepted and reasons for non-acceptance.

[FACT] An SPSC reports to the Governor, who lays the report and corresponding memorandum before the State legislature.

[FACT] A Joint Commission reports annually to the Governor of each served State about work in relation to that State; each Governor lays the relevant report and memorandum before that State legislature.

Visual 31 - Reporting routes

UPSC -> President -> Parliament + non-acceptance memorandum

SPSC -> Governor -> State Legislature + memorandum

Joint PSC -> each Governor (State-specific work)
-> each State Legislature + memorandum

[ANALYSIS] Article 323 converts rejected advice from a private executive departure into a matter capable of legislative scrutiny.

31. Article 321: legislative extension

[FACT] Parliament or a State legislature may extend Commission functions to services of the Union/State and to services of a local authority, statutory body corporate or public institution.

Visual 32 - Constitutional core and legislative extension

Layer	Source	Example scope
core	Article 320	examinations and listed consultation
extension	Act under Article 321	local authority, statutory corporation or public institution services
limit	legislative competence + Constitution	cannot erase constitutional rights or judicial review

[LIMIT] Article 321 is an enabling legislative route, not an automatic extension to every public-sector entity.

32. Article 322: charged expenditure

[FACT] Expenses of the UPSC or an SPSC, including salaries, allowances and pensions payable to or in respect of members or staff, are charged on the Consolidated Fund of India or the State respectively.

Visual 33 - Charged versus voted

CHARGED EXPENDITURE
included in budget
|
discussable
|
NOT submitted to vote
|
reduces annual majoritarian pressure on core Commission expenses

[LIMIT] Charged status protects the mode of authorisation; it does not automatically guarantee adequate staffing, modern technology or timely filling of vacancies.

33. UPSC versus DoPT and the appointing government

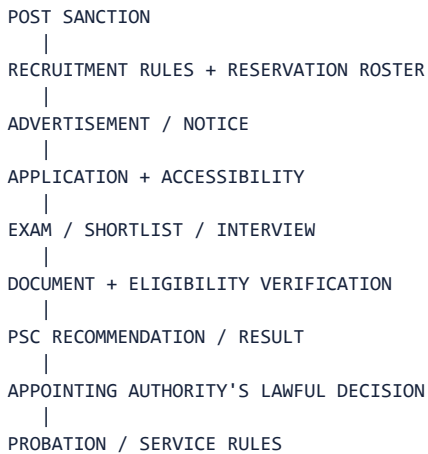
Visual 34 - Personnel-system allocation

Function	Primary institutional owner
create/abolish post	Government under law/rules
frame recruitment/service rules	appropriate government/legislature, often DoPT coordination at Union
conduct specified competitive examination	UPSC/SPSC
advise on recruitment principles/suitability where applicable	UPSC/SPSC
issue appointment order	appointing authority
cadre allocation, training and much career management	Government/cadre-controlling authority
decide service dispute	tribunal/court

[ANALYSIS] The Commission is a merit gatekeeper, not the entire personnel state.

34. Recruitment-process boundaries

Visual 35 - End-to-end recruitment chain



[LIMIT] A recommendation is neither the appointment order nor an immunity certificate for fraud, ineligibility or rule violation.

35. Lateral recruitment: precise constitutional relationship

[FACT] Lateral recruitment is a mode of filling identified posts; it is not a constitutional amendment and does not displace Articles 14, 16, 309 or the applicable reservation and recruitment rules.

[CURRENT] The 15 March 2024 amendment to the UPSC Exemption from Consultation Regulations exempts specified Group A and Group B posts up to pay level 13A when filled through the named deputation/re-employment, short-term-contract, absorption or composite modes.

[LIMIT] The instrument:

- does not say every lateral post is exempt;
- does not decide the rule for posts above its specified coverage;
- does not itself resolve reservation design;
- does not prohibit government from engaging UPSC where the operative framework provides; and
- does not make a contract appointment constitutionally immune from equality review.

Visual 36 - Lateral-entry legality checklist

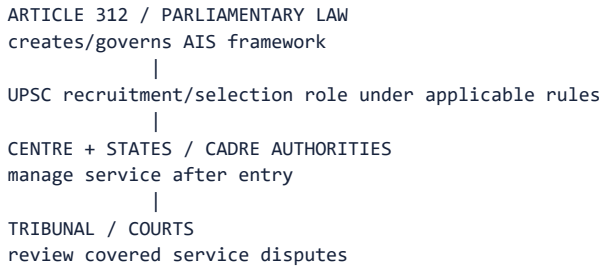
Check	Question
post	what is the sanctioned post and pay level?
rule	what do recruitment rules prescribe?
mode	contract, deputation, absorption, direct selection or composite?
consultation	does Article 320 plus an exemption regulation require/dispense with PSC consultation?
equality	are Articles 14 and 16 satisfied?
reservation	what roster/constitutional/statutory rule applies?
transparency	were criteria and reasons published before selection?
review	is the decision free from mala fides, arbitrariness and rule breach?

36. All-India Services and PSC cross-link

[FACT] Article 312 and the All-India Services framework belong to the Public Services owner. UPSC conducts the Civil Services Examination and participates in specified promotion-selection processes under applicable service rules.

[LIMIT] The UPSC does not create an All-India Service, allocate every cadre power, manage all postings or decide every disciplinary penalty.

Visual 37 - AIS interface



37. Tribunals and recruitment

[FACT] Article 323A permits Parliament to create administrative tribunals for recruitment and service-condition disputes. The Administrative Tribunals Act, 1985 establishes the CAT framework.

[FACT] *L. Chandra Kumar* keeps tribunal decisions subject to High Court review under Articles 226/227.

Visual 38 - Commission versus tribunal

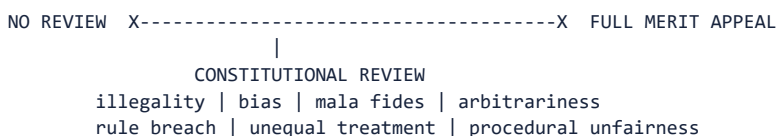
Public Service Commission	Administrative tribunal
recruits/advises	adjudicates covered disputes
constitutional under Arts 315-323	statutory under Art 323A legislation
recommendation/examination role	remedial/decisional role
not a court	quasi-judicial adjudicatory forum

38. Judicial review: neither zero nor appellate re-marking

[FACT] Courts may intervene where a selection is infected by illegality, mala fides, bias, arbitrariness, breach of statutory rules, unequal treatment or violation of the announced process.

[FACT] Courts ordinarily do not sit as an expert selection committee to re-evaluate comparative merit.

Visual 39 - Review spectrum



[ANALYSIS] Judicial restraint protects expert assessment; judicial review protects constitutional legitimacy.

39. Ashok Kumar Yadav: bias and interview fairness

[FACT] *Ashok Kumar Yadav v. State of Haryana* scrutinised Haryana PSC selection, including interview weight and participation concerns involving relations of Commission members.

[ANALYSIS] Its enduring lesson is institutional: a formally expert body can still produce unconstitutional selection if bias safeguards and assessment design are weak.

Visual 40 - Bias-control protocol

Risk	Control
member's relationship/conflict	disclosure and recusal
excessive subjective weight	proportionate, pre-declared criteria
unstructured interview	scoring rubric and records
opaque moderation	documented and auditable method
selective rule application	uniform treatment

[LIMIT] Do not turn a case-specific discussion of interview percentages into an inflexible constitutional number for every service.

40. Stable rules: K. Manjusree and Tej Prakash Pathak

[FACT] *K. Manjusree* disallowed introducing a minimum interview benchmark after the selection process where the governing framework had not prescribed it.

[CURRENT] The Constitution Bench in *Tej Prakash Pathak*, 2024 INSC 847, reaffirmed the core stability principle while locating it in Articles 14 and 16: eligibility/selection criteria cannot be changed after commencement unless the governing rules permit a lawful, non-arbitrary course.

Visual 41 - Rules-of-the-game test

```
Was criterion/rule disclosed in governing rules or notice?
|
NO ---- introduced after process? ----> presumptive arbitrariness
|
YES
|
was application uniform, lawful and non-arbitrary?
|
constitutional validity depends on answer
```

[LIMIT] Administrative clarification is not always a prohibited change; ask whether it alters eligibility, evaluation or outcome criteria.

41. Select list does not create an infeasible right

[FACT] *Shankarsan Dash v. Union of India* held that notification of vacancies and inclusion in a select list do not create an infeasible right to appointment.

[FACT] Government may decide not to fill all vacancies for bona fide reasons, but the decision cannot be arbitrary.

Visual 42 - Recommendation-to-appointment boundary

SUCCESS IN SELECTION

fair consideration + lawful treatment

NO automatic appointment right

government may not act arbitrarily, discriminatorily or in bad faith

[ANALYSIS] The candidate has a right against unconstitutional decision-making, not ownership of the post.

42. M.V. Thimmaiah: limited review of expert recommendations

[FACT] *M.V. Thimmaiah v. UPSC* states that selection-committee recommendations are ordinarily not challengeable except on grounds such as mala fides or serious violation of statutory rules; courts do not act as appellate authorities over expert comparative assessment.

Visual 43 - Court's question set

Court may ask	Court ordinarily will not do
Was the body legally constituted?	replace experts' marks with its preference
Were rules followed?	conduct a fresh interview
Was there bias/mala fide?	rank candidates on perceived merit
Was equality violated?	rewrite recruitment policy without legal defect

43. Public Examinations Act, 2024: verified UPSC application

[CURRENT] The Act's Schedule expressly covers **any examination conducted by the Union Public Service Commission.**

[FACT] Section 3 lists unfair means including question/answer-key leakage, unauthorised access, assistance, answer-sheet tampering, unauthorised assessment alteration, security violations, computer/network tampering, manipulation of shifts/seating, fake websites, fake examinations, fake admit cards and fake offer letters, where the statutory requirements are met.

[FACT] The Act also covers conspiracy, service-provider responsibility, reporting, cognizable/non-bailable/non-compoundable offences, investigation and organised crime.

[LIMIT] It does not constitutionalise every operational choice of UPSC, replace service/recruitment rules or eliminate the need for evidence and due process.

Visual 44 - Integrity-law architecture

PREVENT

norms + centre controls + digital/physical security

DETECT
monitoring + incident evidence + audit trail

REPORT

venue -> coordinator -> regional/public examination authority

1

INVESTIGATE
police / authorised agency under Act

PUNISH
individual / service provider / organised-crime consequences

1

REMEDiate
candidate communication + lawful re-exam/result decision + review

44. Public Examinations Rules, 2024

[CURRENT] The Rules define centre coordinators, regional officers, venue-in-charge responsibilities and monitoring.

[CURRENT] Rule 5 provides for notified norms, standards and guidelines for computer-based tests covering physical and digital infrastructure, centre registration, layout, nodes, servers/networks, platform specifications, readiness audit, biometric check-in, security, seat allocation, question loading, invigilation, post-exam activities and scribes.

[CURRENT] Rule 7 establishes incident-reporting pathways; rule 9 requires every public examination authority to set up an implementation-monitoring mechanism.

Visual 45 - Computer-based-test security layers

Layer	Verified rule theme	Reform use
centre	registration, space and seating	reduce unverified venues
device	node and server specifications	baseline hardening
network	network/platform standards	integrity and availability
people	biometric, screening, invigilation	identity and access control
content	question loading/distribution controls	prevent unauthorised access
audit	pre-exam readiness and post-exam checklist	evidence before/after event
inclusion	scribe guidelines	security without excluding candidates

45. Integrity challenges beyond criminal law

Visual 46 - Threat-control matrix

Challenge	Institutional risk	Calibrated control
paper leak	equal opportunity destroyed	segmented custody, access logs, criminal enforcement
impersonation	false identity	proportionate identity/biometric controls + exception handling
cyber compromise	question/result manipulation	hardened systems, audit trails, independent testing
opaque scaling/moderation	distrust and litigation	pre-declared method and reviewable records
long calendar delays	candidate cost and vacancies	realistic calendar and reasoned updates
result opacity	suspicion and grievance load	marks/cut-off/result disclosure as law permits
weak grievance handling	avoidable litigation	trackable, time-bound, reasoned response
SPSC political capture	patronage and legitimacy loss	transparent appointment criteria, conflict checks, audit

[LIMIT] Security controls must protect privacy, disability accommodation and natural justice; “maximum secrecy” alone is not good governance.

46. Transparent calendars, results and grievance systems

[CURRENT] UPSC and official State PSC portals such as Kerala PSC and TNPSC publish examination programmes/planners and result material; official contact, RTI and grievance channels provide routes for candidate communication.

[ANALYSIS] A credible recruitment institution should publish:

1. a realistic calendar and promptly reasoned deviations;
2. clear eligibility and evaluation rules before the process;
3. result, marks and cut-off information within legal/privacy limits;
4. answer-key objection or representation processes where provided;
5. grievance tracking and speaking responses; and
6. aggregate integrity/audit information that does not compromise future security.

Visual 47 - Transparency ladder

NOTICE

- > RULES
- > CALENDAR
- > PROCESS UPDATES
- > RESULT / MARKS / CUT-OFF
- > REASONS / GRIEVANCE
- > ANNUAL REPORT / LEGISLATIVE SCRUTINY

47. SPSC integrity and capacity risks

Visual 48 - Risk diagnosis

Risk	Why SPSC may be vulnerable	Constitutional answer
vacancies/delayed appointments	small bench loses quorum/capacity	timely, criteria-based appointments
compromised membership	local political networks	conflict disclosure and transparent selection
repeated exam delay	limited technical/administrative capacity	shared standards, trained secretariat, audited vendors
paper leak	decentralised chain and vendor risk	2024 Act where applicable + State law + security protocols
litigation after shifting criteria	weak rule drafting	stable rules and <i>Tej Prakash Pathak</i> compliance
non-acceptance without scrutiny	advisory nature	Article 323 memorandum and committee examination
secretariat dependence	executive control over staff/technology	rule-based staffing and functional budget autonomy

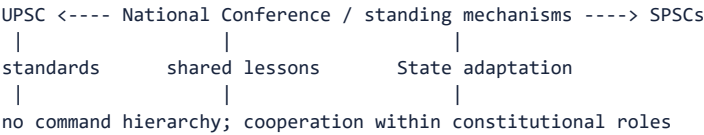
[LIMIT] SPSC performance varies by State. Do not generalise one scandal, vacancy or reform to every Commission.

48. National Conference and horizontal learning

[CURRENT] UPSC's official material describes the National Conference of Chairmen of State Public Service Commissions as a forum for recruitment methods, personnel policy and institutional practice; the first conference was held in 1949, and the UPSC Chair has served as ex officio conference chair since 1999.

[ANALYSIS] Horizontal learning can spread question-bank security, digital standards, vendor controls and grievance design without erasing State constitutional identity.

Visual 49 - Cooperative integrity network



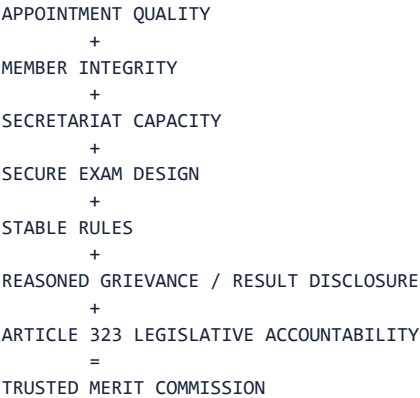
49. Reform menu: adopted law versus proposal

Visual 50 - Reform-status matrix

Reform	Status on control date	Safe answer
Articles 315-323 safeguards	constitutional law	binding baseline
Public Examinations Act/Rules 2024	operative Union law/rules	applies where statutory definition/Schedule covers
15 March 2024 consultation-regulation amendment	notified regulation	apply exact post/mode/level
calendars/results/grievance portals	administrative practice	evaluate quality, not existence alone
transparent PSC appointment criteria	reform proposal in many debates	desirable, not adopted constitutional rule
collegium for PSC appointments	not located as adopted law	never present as current law
fixed recruitment timelines	partly administrative/rule-specific	propose with exception and reasons
independent vendor/cyber audit	governance reform	preserve security and accountability

50. Reform principles

Visual 51 - Seven-part reform framework



[ANALYSIS] Reform should strengthen the lifecycle, not merely add penalties after a leak.

51. Federal significance

Visual 52 - Federal balance

Design choice	Federal meaning
separate SPSC for each State	State-specific recruitment identity
Governor appoints SPSC	State executive connection
President removes all PSC members	insulation from immediate State retaliation
Joint Commission route	voluntary inter-State pooling with parliamentary law
UPSC may serve State	cooperative flexibility
State legislature receives SPSC report	State democratic accountability

[ANALYSIS] The SPSC is State-rooted in appointment and reporting but Union-insulated at removal. This is a deliberate federal asymmetry, not an accidental inconsistency.

52. Accountability without executive capture

Visual 53 - Accountability channels

```

CONSTITUTIONAL TEXT
|
legislative scrutiny <- annual report + non-acceptance reasons
|
judicial review <- legality, equality, bias, mala fides
|
public/RTI transparency <- rules, notices, results, reports
|
internal audit/security <- evidence and controls
|
executive responsibility <- lawful appointment and administration

```

[LIMIT] Accountability does not justify day-to-day political direction of selection results.

53. Common analytical tensions

Visual 54 - Tension and reconciliation

Tension	False binary	Reconciliation
merit vs representation	exam or reservation	lawful merit within equal-opportunity/reservation design
independence vs accountability	secrecy or capture	autonomy + reasons + reporting + review
expertise vs judicial review	experts or courts	expert merits + court legality control
speed vs fairness	instant result or endless hearing	pre-declared process + time-bound remedy
security vs transparency	reveal everything or nothing	disclose governance/audit, protect attack surface
Union standards vs State autonomy	central command or fragmentation	cooperative standards with State adaptation

54. Integrated answer-writing method

Visual 55 - Claim-evidence-analysis-qualification spine

CLAIM
"Article 317 protects tenure through a differentiated removal process."
|
NAMED EVIDENCE
clauses (1), (2), (3), (4)
|
ANALYSIS
insulation prevents executive retaliation
|
QUALIFICATION
appointment remains executive and clause (3) has direct grounds
|
VERDICT
strong removal security, incomplete lifecycle independence

55. Thesis selector

Demand	Qualified thesis
independence	PSC independence is strongest at removal and finance, but practical autonomy depends on appointment quality, staff, security and transparency.
advisory role	Article 320 gives constitutional voice, not a veto; Article 323 makes departure politically accountable.
SPSC federal design	State appointment plus Presidential removal anchors State recruitment while reducing immediate State retaliation.
selection review	courts police legality and equality without becoming interview boards.
exam integrity	criminal deterrence under the 2024 Act must be joined to secure design, audit, communication and remedy.
lateral recruitment	lawfulness depends on the post-specific rule, consultation exemption, reservation and transparent criteria, not on the label "lateral".

56. Prelims trap board

Visual 56 - Close-option corrections

Wrong statement	Correction
Joint PSC is purely extra-constitutional statutory body	Constitution authorises it; parliamentary law activates it
Governor removes SPSC members	President removes
Governor suspends Joint Commission member	President suspends Joint; Governor suspends SPSC
all removal needs SC inquiry	only misbehaviour route; clause (3) grounds are direct Presidential grounds
half members must be IAS officers	near-half need ten years in government office
term runs from notification	six years from entering office
no PSC member can hold any later PSC office	Article 319 differentiates
UPSC advice is binding	generally advisory/directory
Article 320(4) abolishes reservation consultation entirely	exact manner-of-16(4)/335 exception
every government post requires UPSC exam	role depends on rules and valid exemptions
recommendation guarantees appointment	no indefeasible right
courts cannot review selection	limited legality review is available
Public Examinations Act excludes UPSC	UPSC is expressly in Schedule
lateral entry automatically bypasses UPSC	post/mode/rule/exemption specific

Polity 28 - UPSC and SPSC - PYQ, practice and solved workbook

[FACT] This H2 deliberately begins the practice material so that `markdown_learning_pdf.py --mode workbook` extracts the complete solved workbook and stops before the final consolidated register notes.

[FACT] The recent local routing ledgers and integration audits for **2018-2023, 2024-2025 and 2026** were searched precisely for Public Service Commission, Article 315, Article 320, SPSC and Joint State Public Service Commission.

[LIMIT] **No direct standalone UPSC Prelims or GS-II Mains PYQ on the UPSC/SPSC constitutional architecture was verified in those routed ledgers.** Therefore, this package does not manufacture an official question, year, wording or key.

[LIMIT] Adjacent verified questions on civil-service reform, ethos of civil services, administrative tribunals, district-judge recruitment and bank-chair selection remain with their audited Governance, Public Services, Judiciary, Tribunal or Economy owners. They are not relabelled as PSC PYQs merely because recruitment is an adjacent concept.

Visual 57 - PYQ audit outcome

Ledger window	Exact PSC route found?	Package action
2018-2023 Prelims/Mains	no direct standalone route	state absence; do not invent
2024-2025 Prelims/Mains	no direct standalone route	state absence; do not invent
2026 ledgers/audit	no routed PSC question	state absence; do not invent
adjacent recruitment/service demands	yes, but owned elsewhere	cross-link, not duplicate

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Article 315 baseline

Which statement is constitutionally correct?

A. There shall be a Public Service Commission for the Union and for each State, subject to Article 315. B. Parliament must create every SPSC by ordinary law. C. The Supreme Court determines the number of PSCs. D. One Commission must serve the Union and all States.

Answer: A.

Explanation: [FACT] Article 315(1) establishes the Union and State Commission baseline, subject to the cooperative alternatives in the Article.

OM2. Creating a Joint State PSC

A Joint State Public Service Commission is provided for when:

A. two Governors issue a joint executive order. B. relevant State legislatures pass resolutions and Parliament provides by law. C. the Inter-State Council recommends it. D. the UPSC Chair approves a merger.

Answer: B.

Explanation: [FACT] Article 315(2) requires State legislative resolutions and a parliamentary law.

OM3. Appointment to a Joint Commission

The Chair and members of a Joint State Public Service Commission are appointed by:

A. the Governors jointly. B. Parliament's presiding officers. C. the President. D. the Chief Justice of India.

Answer: C.

Explanation: [FACT] Article 316(1) places UPSC and Joint Commission appointments with the President.

OM4. SPSC removal

An SPSC member can constitutionally be removed by:

A. the Governor alone. B. the State legislature by special majority. C. the Chief Minister after Cabinet advice. D. the President under Article 317.

Answer: D.

Explanation: [FACT] Appointment is by the Governor, but removal authority for every PSC is the President.

OM5. Experience rule

Article 316 requires that:

A. as nearly as may be one-half of members have at least ten years of specified government office. B. every member be a retired civil servant. C. the Chair have twenty years of judicial service. D. exactly half be serving IAS officers.

Answer: A.

Explanation: [FACT] The near-half ten-year rule is the only universal composition qualification in the constitutional text.

OM6. UPSC tenure

A UPSC member ordinarily serves:

A. five years or age 62. B. six years from entering office or age 65, whichever is earlier. C. six years from notification regardless of age. D. until presidential pleasure ends.

Answer: B.

Explanation: [FACT] Article 316(2) uses entry upon office and the earlier of six years or age 65.

OM7. SPSC resignation

An SPSC member resigns by writing addressed to:

A. the President. B. the Chief Minister. C. the Governor. D. the State legislature.

Answer: C.

Explanation: [FACT] The resignation addressee differs from the removal authority.

OM8. Reappointment rule

On expiry of term, a PSC member:

A. may always obtain a second identical term. B. may be reappointed if the executive records reasons. C. is barred from every different PSC office. D. is ineligible for reappointment to that office, subject to Article 319 progression.

Answer: D.

Explanation: [FACT] Article 316(3) bars the same office; Article 319 separately states permitted later PSC offices.

OM9. Acting UPSC Chair

When the UPSC Chair cannot perform duties, the acting arrangement is made by:

A. the President from among other Commission members. B. the Cabinet Secretary from the civil service. C. the senior-most member automatically. D. Parliament by resolution.

Answer: A.

Explanation: [FACT] Article 316(1A) requires Presidential appointment; automatic seniority is not the text.

OM10. Misbehaviour removal

Removal for misbehaviour requires:

A. a State Cabinet inquiry. B. a Presidential reference and Supreme Court inquiry/report. C. a parliamentary impeachment vote. D. a Commission majority.

Answer: B.

Explanation: [FACT] Article 317(1), not the judicial-removal address procedure, controls.

OM11. Direct clause (3) ground

Which is a direct Presidential removal ground under Article 317(3)?

A. disagreement with government policy. B. an adverse annual report. C. infirmity of mind or body making the member unfit. D. refusal to accept an executive recommendation.

Answer: C.

Explanation: [FACT] Insolvency, paid outside employment and qualifying infirmity are clause (3) grounds.

OM12. Joint Commission suspension

After a Supreme Court reference, a Joint Commission member may be suspended by:

A. any served State's Governor. B. the Governor chosen by rotation. C. Parliament. D. the President.

Answer: D.

Explanation: [FACT] Article 317(2) gives the President suspension power for Union and Joint Commissions.

OM13. Article 318 safeguard

Which condition is constitutionally protected?

A. A member's service conditions cannot be varied to the member's disadvantage after appointment. B. Staff conditions can never be altered. C. Commission strength is permanently frozen. D. Every member receives a judicial salary.

Answer: A.

Explanation: [FACT] The Article 318 proviso expressly protects members against disadvantageous variation.

OM14. Former SPSC Chair

A former SPSC Chair may be eligible to become:

A. any Union Secretary. B. a member or Chair of the UPSC, or Chair of another SPSC. C. an SPSC member in the same State. D. any public-sector chief executive.

Answer: B.

Explanation: [FACT] Article 319(b) permits the specified PSC offices and bars other government employment.

OM15. Former UPSC member

A former UPSC member other than the Chair may be eligible as:

A. any SPSC member. B. any government adviser. C. UPSC Chair or Chair of an SPSC. D. the same UPSC member for a second term.

Answer: C.

Explanation: [FACT] Article 319(c) does not permit ordinary SPSC membership.

OM16. Former UPSC Chair

On ceasing office, the UPSC Chair is:

A. eligible to chair any SPSC. B. eligible to become a Union Secretary. C. eligible for any State government employment. D. ineligible for further employment under Union or State government.

Answer: D.

Explanation: [FACT] Article 319(a) is the strictest of the four post-office clauses.

OM17. Examination duty

Article 320(1) makes it the duty of PSCs to:

A. conduct examinations for appointments to the respective Union/State services. B. appoint every selected candidate. C. frame all service laws. D. adjudicate all service disputes.

Answer: A.

Explanation: [FACT] Examination is a core duty; appointment and adjudication remain elsewhere.

OM18. Joint recruitment scheme

Under Article 320(2), UPSC assists:

A. one State whenever its SPSC is vacant. B. two or more requesting States with joint recruitment for specially qualified services. C. Parliament in recruiting judges. D. private employers seeking a common test.

Answer: B.

Explanation: [FACT] This is joint-scheme assistance, not a Joint Commission.

OM19. Consultation subject

Which matter is expressly within Article 320(3)?

A. delimitation of constituencies. B. fixing the Finance Commission formula. C. a qualifying official-duty legal-defence cost claim. D. deciding an election petition.

Answer: C.

Explanation: [FACT] Article 320(3)(d) is a frequently overlooked consultation subject.

OM20. Article 320(4)

Article 320(4) means that PSC consultation is not required regarding:

A. every appointment of an SC/ST candidate. B. all promotions involving reservation. C. every application of Article 16. D. the manner of making Article 16(4) provision or giving effect to Article 335.

Answer: D.

Explanation: [FACT] The exact textual scope must replace the loose statement that “reservation is outside UPSC”.

OM21. Exemption regulations

Regulations under the proviso to Article 320(3):

A. must be laid for at least fourteen days before the relevant legislature and are modifiable. B. are secret executive instructions. C. require Supreme Court approval. D. permanently amend Article 320.

Answer: A.

Explanation: [FACT] Article 320(5) creates legislative scrutiny of delegated exemptions.

OM22. Nature of advice

The safest statement is:

A. PSC advice always binds the government. B. Article 320 consultation is generally directory; advice is not a legal veto. C. government may ignore the Commission without accountability. D. non-consultation automatically voids every action.

Answer: B.

Explanation: [FACT] *Manbodhan Lal* establishes directory consultation while recognising its constitutional importance.

OM23. Article 321

Additional PSC functions concerning local authorities or statutory bodies may be conferred by:

A. a Commission resolution alone. B. a Supreme Court practice direction. C. an Act of Parliament or the competent State legislature. D. an annual report.

Answer: C.

Explanation: [FACT] Article 321 supplies the legislative-extension route.

OM24. Charged expenditure

Under Article 322, SPSC expenses are charged on:

A. the Consolidated Fund of India. B. the Public Account of the State. C. a Commission fee fund. D. the Consolidated Fund of the State.

Answer: D.

Explanation: [FACT] Charged expenditure is not submitted to vote, though it may be discussed.

OM25. UPSC report

Where UPSC advice is not accepted, Article 323 requires:

A. a memorandum explaining cases and reasons to accompany the report laid before Parliament. B. automatic judicial invalidation. C. the President to reverse the government. D. a national referendum.

Answer: A.

Explanation: [FACT] Reporting and reasons are the constitutional accountability substitute for binding advice.

OM26. Joint Commission reporting

A Joint Commission reports:

A. only to Parliament. B. to each served State's Governor on work relating to that State. C. only to the President. D. to the Inter-State Council.

Answer: B.

Explanation: [FACT] Each Governor lays the relevant report and non-acceptance memorandum before that State legislature.

OM27. UPSC and DoPT

Which allocation is correct?

A. UPSC manages all cadres and training. B. DoPT conducts every UPSC examination. C. UPSC recruits/advises; government/DoPT owns much rule, cadre and personnel management. D. CAT appoints civil servants.

Answer: C.

Explanation: [FACT] The constitutional Commission is not the entire personnel administration.

OM28. Select-list right

Shankarsan Dash establishes that:

A. every notified vacancy must be filled. B. selection creates property in the post. C. government discretion is immune from equality review. D. inclusion in a select list creates no indefeasible appointment right, though action cannot be arbitrary.

Answer: D.

Explanation: [FACT] Fair consideration and non-arbitrariness survive without an automatic appointment right.

OM29. Judicial review of selection

Courts may properly interfere where:

A. statutory rules are seriously violated or mala fides/bias is shown. B. a judge personally prefers another candidate. C. interview answers could have been marked differently. D. the court wants to design a new service.

Answer: A.

Explanation: [FACT] *M.V. Thimmaiah* protects expert merits while preserving review for legal defects.

OM30. Manbodhan Lal

The case is chiefly associated with:

A. the age ceiling of SPSC members. B. Article 320 consultation being directory rather than mandatory. C. creation of a Joint Commission. D. charged expenditure.

Answer: B.

Explanation: [FACT] The decision arose in the disciplinary-consultation context.

OM31. Mid-process criteria

Which principle follows from *K. Manjusree* and *Tej Prakash Pathak*?

A. every clarification is illegal. B. criteria may always change before results. C. eligibility/selection criteria cannot be altered mid-process unless lawful rules permit a non-arbitrary course. D. candidates control recruitment rules.

Answer: C.

Explanation: [FACT] The doctrine is anchored in equal, predictable public employment under Articles 14 and 16.

OM32. Public Examinations Act coverage

The 2024 Act's Schedule:

A. excludes constitutional bodies. B. covers only school boards. C. covers UPSC only after a separate State notification. D. expressly includes examinations conducted by UPSC.

Answer: D.

Explanation: [CURRENT] UPSC is item 1 in the Schedule.

OM33. Monitoring rule

The Public Examinations Rules, 2024 require:

A. each public examination authority to establish an implementation-monitoring mechanism. B. the Supreme Court to audit every examination. C. all exams to use one private vendor. D. abolition of offline examinations.

Answer: A.

Explanation: [CURRENT] Rule 9 supplies the monitoring duty.

OM34. 15 March 2024 consultation amendment

The precise statement is:

A. it exempts every lateral appointment. B. it exempts specified Group A/B posts up to level 13A filled through named modes. C. it abolishes Article 320. D. it applies to every SPSC.

Answer: B.

Explanation: [CURRENT] Post level and mode are essential; "lateral entry" is not the regulation's universal label.

OM35. Tribunal boundary

Which institution principally adjudicates covered Union recruitment/service disputes at first instance?

A. UPSC. B. Finance Commission. C. Central Administrative Tribunal under its statutory jurisdiction. D. Election Commission.

Answer: C.

Explanation: [FACT] Commission and tribunal functions are institutionally distinct.

OM36. Independence assessment

Which conclusion is strongest?

A. charged expenditure alone guarantees integrity. B. Presidential removal makes appointments irrelevant. C. non-binding advice means no independence exists. D. appointment quality, tenure, finance, staff, secure process, reporting and review interact.

Answer: D.

Explanation: [ANALYSIS] Independence is systemic, not a one-clause label.

Remedial MCQs - strict continuation A -> B -> C -> D rotation

RM1. Joint Commission status

The best description of a Joint State PSC is:

A. constitutionally contemplated and brought into operation by parliamentary law after State resolutions. B. purely executive and extra-constitutional. C. automatically created when two Governors agree. D. identical to UPSC assistance under Article 315(4).

Answer: A.

Explanation: [FACT] This formulation preserves both constitutional source and statutory creating instrument.

RM2. Suspension trap

After an Article 317 reference concerning an SPSC member, suspension may be ordered by:

A. the President only. B. the Governor. C. the State legislature. D. the SPSC Chair.

Answer: B.

Explanation: [FACT] Final removal remains with the President; suspension authority is differentiated.

RM3. Contract interest

A PSC member's prohibited interest in a government contract is:

A. a direct insolvency ground. B. irrelevant after disclosure. C. deemed misbehaviour subject to the Article 317(1) route, with the company-membership exception. D. decided finally by the Commission.

Answer: C.

Explanation: [FACT] Article 317(4) supplies the deemed-misbehaviour rule.

RM4. Same-office trap

Article 316(3) means:

A. no former member may ever serve another PSC. B. a second term is allowed after a gap. C. Article 319 is redundant. D. reappointment to the same office is barred, while exact different-office eligibility is separately tested.

Answer: D.

Explanation: [FACT] The two Articles must be read together.

RM5. Advice-accountability link

If government rejects PSC advice, the constitutional model relies especially on:

A. reasons and the Article 323 report/memorandum route. B. automatic contempt. C. Commission veto. D. dismissal of the minister.

Answer: A.

Explanation: [ANALYSIS] Public reason and legislative scrutiny give advisory power consequence.

RM6. Reservation nuance

Article 320(4):

A. prohibits reservation. B. removes the requirement of PSC consultation on the specified manner of Article 16(4)/335 implementation. C. permits PSC to ignore a roster. D. excludes every SC/ST candidate from Commission recruitment.

Answer: B.

Explanation: [FACT] The exception concerns required consultation, not substantive equality law.

RM7. Lateral-entry trap

The correct method is to:

A. assume every contract post is unconstitutional. B. assume every lateral post is UPSC-exempt. C. check post, level, recruitment rule, mode, consultation regulation, reservation and transparency. D. treat media terminology as the legal rule.

Answer: C.

Explanation: [ANALYSIS] Post-specific legal analysis prevents overstatement in either direction.

RM8. Appointment-right trap

A selected candidate:

A. owns the vacancy. B. cannot be rejected for discovered ineligibility. C. can compel filling of every advertised vacancy. D. has no automatic appointment right but is protected against arbitrary State action.

Answer: D.

Explanation: [FACT] This is the calibrated *Shankarsan Dash* rule.

RM9. Court's role

In reviewing PSC selection, a court should principally:

A. test legality, fairness, bias and rule compliance. B. conduct a new viva voce. C. substitute its preferred scoring system. D. fill vacancies directly whenever possible.

Answer: A.

Explanation: [FACT] Review is constitutional supervision, not merit appeal.

RM10. Public-examination law

The 2024 Act:

A. replaces Articles 315-323. B. adds anti-unfair-means offences and controls to the existing recruitment framework. C. guarantees every exam will be leak-proof. D. governs only private coaching tests.

Answer: B.

Explanation: [CURRENT] It supplements, rather than constitutionalises or perfects, exam administration.

RM11. SPSC reform

Which is a calibrated integrity reform?

A. executive power to alter criteria after the exam. B. permanent secrecy over results. C. timely criteria-based appointments, conflict controls, secure systems and reasoned grievance handling. D. removal of judicial review.

Answer: C.

Explanation: [ANALYSIS] Reform must strengthen capacity and accountability without executive capture.

RM12. Examiner-grade method

The best paragraph sequence is:

A. slogan -> allegation -> prediction. B. case name -> unrelated statistic -> wish. C. definition -> copied list -> absolute claim. D. claim -> named evidence -> analysis -> qualification.

Answer: D.

Explanation: [ANALYSIS] This pattern demonstrates control, relevance and balance.

Original solved Mains practice

M1. Article 317 does not provide one uniform removal process for every allegation against a Public Service Commission member. Explain. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 317 centralises final removal in the President but differentiates misbehaviour from three direct constitutional grounds; [ANALYSIS] that distinction combines tenure security with workable incapacity and conflict controls.

Misbehaviour: [FACT] Under clause (1), the President refers the allegation to the Supreme Court, which conducts an inquiry under the Article 145 procedure and reports whether the member ought to be removed. [FACT] Clause (4) deems prohibited interest in a government contract to be misbehaviour.

Direct grounds: [FACT] Clause (3) allows Presidential removal for adjudged insolvency, paid employment outside office, or unfitness due to infirmity of mind or body without using the separate clause (1) inquiry route.

Suspension: [FACT] Once reference is made, the President may suspend a UPSC/Joint Commission member, while the Governor may suspend an SPSC member, until the President acts on the Court's report.

Qualification: [LIMIT] The Governor never finally removes an SPSC member, and Parliament's judicial-address procedure is inapplicable.

Verdict: Article 317 protects against retaliatory removal without making the office incapable of responding to objective disqualification or incapacity.

Outstanding-answer test: It names all four clauses, distinguishes removal from suspension and avoids importing "impeachment".

M2. Public Service Commission advice is non-binding, yet constitutionally consequential. Comment. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 320 creates a constitutional consultation voice rather than a veto; [ANALYSIS] its consequence arises from expertise, convention and public accountability.

Scope: [FACT] Consultation covers recruitment methods, appointment/promotion/transfer principles and suitability, disciplinary matters, official-duty legal-cost claims and injury pensions. This gives the Commission structured access before important personnel decisions.

Legal limit: [FACT] *State of U.P. v. Manbodhan Lal Srivastava* held Article 320(3) directory, so non-consultation does not automatically invalidate executive action. Valid regulations may also specify consultation exceptions.

Accountability: [FACT] Article 323 requires annual reports and memoranda explaining cases and reasons where advice was not accepted. [ANALYSIS] Rejection thus becomes capable of legislative and public scrutiny.

Qualification: [LIMIT] Directory does not mean dispensable at will; arbitrariness, mala fides and rule violations remain reviewable.

Verdict: The Commission influences by reason and disclosure, not command—a soft legal power strengthened by hard reporting duties.

Outstanding-answer test: It links Articles 320 and 323 and states *Manbodhan Lal* without saying advice is meaningless.

M3. A Joint State Public Service Commission is neither purely statutory nor automatically created by the Constitution. Clarify. (10 marks, 150 words)

Model solution

Thesis: [FACT] Article 315(2) supplies the constitutional design, while a parliamentary law after State legislative resolutions supplies the operational creating instrument.

Constitutional foundation: Two or more States may agree to a common Commission. Each relevant House—or each House in a bicameral State—must pass the resolution contemplated by Article 315(2).

Statutory activation: Parliament may then by law provide for appointment and incidental/consequential matters. [FACT] The President appoints its Chair/members under Article 316, regulates it under Article 318 and may suspend its member after an Article 317 reference.

Distinctions: [FACT] It differs from UPSC serving a State under Article 315(4) and from UPSC assistance for a joint recruitment scheme under Article 320(2).

Qualification: [LIMIT] Calling it merely “statutory” can hide its constitutional status; calling it self-executing ignores the required law.

Verdict: It is best described as a constitutionally authorised common Commission instantiated by parliamentary statute through State consent.

Outstanding-answer test: It separates source, trigger, law, appointing authority and two neighbouring devices.

M4. Examine the constitutional safeguards and practical limits of UPSC/SPSC independence. (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] PSC independence is strongest at removal and finance but incomplete across the institutional lifecycle; appointment quality, staff, technology and compliance conventions determine whether constitutional insulation becomes practical autonomy.

Constitutional safeguards

1. [FACT] Article 315 creates the Commissions directly and prevents ordinary executive abolition of their core.
2. [FACT] Article 316 fixes six-year/age-limited tenure, reducing pleasure-based insecurity.
3. [FACT] Article 317 reserves final removal to the President and subjects misbehaviour to Supreme Court inquiry.
4. [FACT] Article 318 bars disadvantageous variation of member service conditions.
5. [FACT] Article 319 narrows post-office government employment, reducing favour-seeking.
6. [FACT] Article 322 charges UPSC/SPSC expenditure on the relevant Consolidated Fund.
7. [FACT] Article 323 requires reporting and reasons for rejected advice.

Practical limits

- [FACT] President/Governor appoint members without an adopted constitutional collegium.
- [FACT] Article 320 advice is generally non-binding after *Manbodhan Lal*.
- [ANALYSIS] Executive control over staff, technology procurement and timely vacancies can weaken an otherwise protected body.
- [ANALYSIS] SPSC quality may vary with local political networks, secretariat capacity and examination-security systems.

Counterpoint: [ANALYSIS] Binding advice on every matter could transfer democratic personnel responsibility to an unelected commission.

Reforms: publish appointment criteria and conflicts, fill vacancies predictably, strengthen rule-based staff and cyber capacity, improve speaking grievance decisions, and ensure legislative committees examine Article 323 memoranda.

Qualification: [LIMIT] No speculative collegium should be presented as current law.

Verdict: The Constitution protects the Commission from dismissal; governance reform must protect it from dependence, delay and distrust.

Outstanding-answer test: It uses at least five exact Articles, presents both institutional case and democratic limit, and offers implementable reforms.

M5. Courts review Public Service Commission selections, but they do not sit as appellate selection boards. Analyse. (15 marks, 250 words)

Model solution

Thesis: [FACT] Judicial review protects Articles 14 and 16, statutory rules and procedural fairness; [ANALYSIS] judicial restraint simultaneously protects expert comparative assessment.

Reviewable defects

- [FACT] *Ashok Kumar Yadav* demonstrates that PSC selection remains reviewable for bias and arbitrary interview design.
- [FACT] *K. Manjusree* invalidated a minimum interview benchmark introduced after the process.
- [CURRENT] *Tej Prakash Pathak*, 2024 INSC 847, Constitution Bench, reaffirms stability of eligibility/selection rules unless the governing framework permits a lawful, non-arbitrary change.
- [FACT] Mala fides, unequal treatment, ineligible decision-makers and serious statutory-rule violations remain review grounds.

Restraint

[FACT] *M.V. Thimmaiah v. UPSC* states that courts ordinarily do not act as appellate authorities over expert recommendations; review is exceptional for mala fides or serious rule breach.

Appointment boundary

[FACT] *Shankarsan Dash* denies an indefeasible appointment right merely from select-list inclusion. Yet government cannot arbitrarily refuse appointment or selectively apply its decision.

Institutional reason: [ANALYSIS] Judges are equipped to decide legality, not to reconstruct specialist scoring, interviews and service suitability.

Qualification: [LIMIT] "Expert opinion" cannot shield conflict of interest, undisclosed criteria or discrimination.

Verdict: The correct line is **merit deference with legality control**: courts do not choose candidates, but they ensure the State chooses by known, equal and lawful rules.

Outstanding-answer test: It gives four named cases with propositions and distinguishes selection, recommendation and appointment.

M6. Examination integrity requires more than criminal punishment. Discuss with reference to the Public Examinations framework and PSC governance. (15 marks, 250 words)

Model solution

Thesis: [CURRENT] The Public Examinations Act and Rules, 2024 add a strong anti-unfair-means framework; [ANALYSIS] deterrence succeeds only when joined to prevention, detection, transparent remedy and institutional capacity.

Legal layer

[FACT] The Act's Schedule expressly covers UPSC examinations. Section 3 includes leakage, unauthorised access/assistance, answer-sheet and assessment tampering, security/network manipulation, fake sites, fake exams and fake offer letters. Offences are cognizable, non-bailable and non-compoundable; service-provider and organised-crime liability addresses systemic wrongdoing.

Preventive layer

[CURRENT] Rule 5 contemplates CBT standards for centres, nodes, servers, networks, platforms, readiness audits, biometrics, security, question loading, invigilation and post-exam checks. Rule 9 requires implementation monitoring.

Governance layer

- segment question access and retain audit logs;
- independently test high-risk digital systems and vendors;
- publish stable criteria, calendars and prompt reasons for delay;
- provide accessible grievance and answer-key/result representation channels;
- prepare continuity/re-examination protocols that protect innocent candidates.

Qualification: [LIMIT] Maximum secrecy can conceal weak governance; maximum disclosure can reveal attack surfaces. Privacy, disability accommodation and natural justice must remain intact.

Verdict: Criminal law punishes the breach; trustworthy PSC design prevents it, detects it early and gives candidates a lawful remedy.

Outstanding-answer test: It names the Act's UPSC Schedule, verified Rules and a full prevent-detect-report-remedy cycle.

M7. "The SPSC is State-rooted but Union-insulated." Evaluate this federal design and suggest reforms. (20 marks, 300 words)

Model solution

Thesis: [FACT] The Governor appoints SPSC members and receives their annual report, while the President alone removes them; [ANALYSIS] this asymmetry combines State recruitment ownership with protection from immediate State executive retaliation.

State-rooted elements

1. [FACT] Article 315 provides an SPSC for each State.
2. [FACT] The Governor appoints the Chair and members under Article 316.
3. [FACT] The Governor determines membership/staff conditions by regulations under Article 318.
4. [FACT] The SPSC recruits for State services and reports to the Governor under Article 323.
5. [FACT] The State legislature receives the report and non-acceptance memorandum.

Union-insulated elements

1. [FACT] Only the President removes an SPSC member under Article 317.
2. [FACT] Misbehaviour requires Supreme Court inquiry.
3. [FACT] The State government cannot use removal simply because advice is inconvenient.
4. [FACT] The constitutional age/tenure, service-condition and post-office rules limit local executive control.

Federal flexibility

[FACT] States may seek a Joint Commission through resolutions and parliamentary law, use UPSC assistance under Article 315(4), or request joint-scheme help under Article 320(2).

Problems

[ANALYSIS] Executive appointment dominance, vacancies, local conflicts, weak vendor/security capacity, shifting criteria and poor grievance systems can defeat formal insulation. Presidential removal is a last-resort safeguard, not daily quality assurance.

Reforms

- publish qualification, integrity and conflict criteria for appointments;
- create predictable appointment/vacancy calendars;
- professionalise permanent secretariats and digital-security cells;
- adopt national-conference standards while preserving State adaptation;
- publish reasons, marks/cut-offs and grievance outcomes within law;

- strengthen legislative committee scrutiny of Article 323 reports.

Qualification: [LIMIT] A Union-controlled appointment system would over-correct the State problem and weaken federal ownership; no adopted collegium should be assumed.

Verdict: The design wisely separates State connection from State removal control. Its unfinished task is to add transparent appointment and operational capacity to constitutional tenure security.

Outstanding-answer test: It evaluates both federal poles, uses Articles 315-323 and rejects both centralisation and local capture.

M8. Critically examine whether lateral recruitment is inconsistent with the constitutional role of the UPSC and the equality code in public employment. (20 marks, 300 words)

Model solution

Thesis: [FACT] Lateral recruitment is not per se unconstitutional and UPSC has no monopoly over every post; [ANALYSIS] legality depends on post-specific recruitment rules, consultation requirements, Articles 14 and 16, reservation, transparent criteria and non-arbitrary selection.

Why it may be legitimate

- [FACT] Article 309 permits recruitment and service conditions to be regulated by law/rules.
- [FACT] Article 320 envisages examinations and consultation but also constitutionally permits exemption regulations.
- [ANALYSIS] Specialist, time-bound or scarce-skill posts may justify direct selection, deputation or contract where rules authorise it.
- [ANALYSIS] An independent expert/UPSC role can strengthen credibility even when a competitive generalist examination is unsuitable.

Constitutional concerns

- bypassing a valid consultation requirement;
- vague or tailored eligibility criteria;
- changing benchmarks after applications;
- inadequate advertisement and conflict disclosure;
- arbitrary shortlisting/interview;
- evasion rather than lawful application of reservation/equal-opportunity rules;
- repeated temporary hiring that replaces rule-bound career structures.

Current regulatory nuance

[CURRENT] G.S.R. 203(E), 15 March 2024, exempts specified Group A/B posts up to level 13A filled through named deputation/re-employment, short-term-contract, absorption or composite modes. [LIMIT] It is not a blanket “lateral entry exemption”; higher/different posts require their own legal analysis.

Judicial control

[FACT] *K. Manjusree* and *Tej Prakash Pathak* require stable criteria; *M.V. Thimmaiah* supports merit deference subject to legality; *Shankarsan Dash* denies an automatic appointment right but not equality review.

Reform design

Publish a post-wise skills gap, recruitment rule and reservation position; use wide notice; pre-declare scoring and conflicts; include independent expertise; record reasons; cap tenure with evaluation; publish aggregate outcomes; preserve review.

Qualification: [LIMIT] Neither “all expertise lies outside government” nor “only career examination creates merit” is defensible.

Verdict: Lateral recruitment can supplement the constitutional merit system only when it is more transparent and rule-bound than patronage—not a label used to escape it.

Outstanding-answer test: It avoids a yes/no slogan, cites Articles 309/320, the exact 2024 regulation, reservation, four cases and a workable design.

Final consolidated register notes - UPSC, SPSC and Joint State PSC

Constitutional purpose and institutional lineage

- [FACT] Public Service Commissions convert recruitment from executive patronage toward rule-based, equal and expert selection.
- [FACT] Institutional lineage: competitive turn after 1853 -> 1919 Act provision -> Lee Commission -> first PSC in 1926 -> Federal/Provincial/Joint design under 1935 Act -> Articles 315-323 in 1950.
- [ANALYSIS] The constitutional settlement is **insulated advice plus democratic executive responsibility**, not a Commission monopoly over the personnel state.
- [LIMIT] Competitive examination is one merit tool; competence must coexist with equality, reservation, accessibility and post-specific suitability.

Visual 58 - Article 315-323 rapid spine

Article	Recall phrase
315	Union, State, Joint and UPSC-for-State
316	appointment, near-half ten-year rule, acting Chair, term/resignation
317	removal, suspension and contract-interest misbehaviour
318	member/staff regulations; no adverse member variation
319	four differentiated post-office restrictions
320	exams, joint schemes, consultation, exceptions and laying
321	legislative extension
322	charged expenses
323	reports, memoranda and legislatures

The three Commission forms

- [FACT] UPSC and each SPSC exist directly under Article 315(1).
- [FACT] Joint Commission: State legislative resolutions -> parliamentary law -> President appoints.
- [ANALYSIS] Best description: constitutionally authorised, statutorily instantiated.
- [FACT] Article 315(4): Governor request + President approval + UPSC agreement for State needs.
- [FACT] Article 320(2): two or more States may request a joint recruitment scheme for specially qualified services.

Visual 59 - Three-device recall

315(2) = common COMMISSION

315(4) = UPSC serves a STATE

320(2) = common RECRUITMENT SCHEME

Membership, tenure and acting arrangements

- [FACT] President appoints UPSC/Joint; Governor appoints SPSC.
- [FACT] Strength is not constitutionally fixed.
- [FACT] As nearly as may be half the members: ten years in specified government office; qualifying pre-1950 service counts.
- [FACT] Six years from entering office or age 65 UPSC / 62 SPSC and Joint, whichever earlier.
- [FACT] Resignation: President for UPSC/Joint; Governor for SPSC.
- [FACT] Acting Chair: another member appointed by President/Governor until entry/resumption.
- [FACT] No reappointment to the same office after expiry; test different-office progression under Article 319.

Removal and suspension

Visual 60 - Article 317 compressed tree

MISBEHAVIOUR -> President reference -> Supreme Court inquiry/report -> President

DIRECT 317(3) -> insolvency / outside paid work / qualifying infirmity -> President

SUSPENSION AFTER REFERENCE:

UPSC/Joint -> President

SPSC -> Governor

- [FACT] Government-contract interest is deemed misbehaviour, subject to the incorporated-company exception.
- [LIMIT] Never write "Governor removes SPSC", "all grounds need SC inquiry" or "Parliament impeaches PSC members".

Article 318 and Article 319

- [FACT] President regulates UPSC/Joint member and staff number/conditions; Governor does so for SPSC.
- [FACT] Member conditions cannot be varied to disadvantage after appointment.

Visual 61 - Post-office memory grid

Former	Permitted PSC progression
UPSC Chair	none
SPSC Chair	UPSC Chair/member; another SPSC Chair
UPSC member	UPSC Chair; SPSC Chair
SPSC member	UPSC Chair/member; same/other SPSC Chair

- [LIMIT] Every row also bars other Union/State government employment.

Functions and consultation

- [FACT] Article 320(1): examinations for respective services.
- [FACT] Article 320(3): methods; principles; suitability; discipline; official-duty legal costs; injury pension; referred matters.
- [FACT] Valid regulations may exempt specified matters/classes/circumstances.
- [FACT] Article 320(4): no required consultation on manner of Article 16(4) provision or giving effect to Article 335.
- [FACT] Exemption regulations must be laid for at least fourteen days and remain legislatively modifiable.
- [FACT] *Manbodhan Lal*: consultation directory, not mandatory; still an important safeguard.

Visual 62 - Advice-to-accountability chain



Extension, finance and reports

- [FACT] Article 321: legislative extension to local authorities, statutory bodies corporate and public institutions.
- [FACT] Article 322: UPSC/SPSC expenses charged on relevant Consolidated Fund.
- [FACT] Article 323: UPSC -> President -> Parliament; SPSC -> Governor -> State legislature; Joint -> each Governor for State-specific work -> each legislature.
- [LIMIT] Charged expenditure does not guarantee adequate capacity; reporting does not help if delayed or perfunctory.

Recruitment boundaries and cross-links

Visual 63 - Who owns what

Stage	Owner
post/rule/roster	government under law and equality code
exam/selection advice	PSC where applicable
appointment order	appointing authority
cadre/training/posting	government/DoPT/cadre authority
recruitment/service dispute	tribunal/court
additional public-body role	legislation under Article 321

- [FACT] Recommendation is not appointment.
- [FACT] *Shankarsan Dash*: no infeasible appointment right; arbitrariness still prohibited.
- [FACT] *M.V. Thimmaiah*: limited review; no appellate re-selection.
- [FACT] *Ashok Kumar Yadav*: bias/arbitrariness controls expert selection.
- [FACT] *K. Manjusree + Tej Prakash Pathak*: stable, pre-declared lawful criteria.

Lateral recruitment control

- [FACT] Analyse through Articles 14, 16 and 309; recruitment rule; post/level; mode; reservation; consultation regulation; procedure and reasons.
- [CURRENT] 15 March 2024 regulation: specified Group A/B up to level 13A through named modes.
- [LIMIT] Never call this a universal lateral-entry exemption.
- [ANALYSIS] Lateral recruitment is legitimate only as transparent specialist supplementation, not patronage or rule evasion.

Examination integrity and current controls

- [CURRENT] Public Examinations Act commenced 21 June 2024; UPSC expressly in Schedule.
- [FACT] Coverage includes leakage, collusion, unauthorised access/assistance, answer/assessment tampering, digital/security manipulation, fake sites/exams/documents and organised crime, subject to statutory elements.
- [CURRENT] Rules cover CBT infrastructure, networks, audits, biometrics, question loading, invigilation, incident reporting and monitoring.
- [ANALYSIS] Best reform cycle: prevent -> detect -> record -> report -> investigate -> remedy -> learn.
- [LIMIT] Criminal law does not replace fair re-examination/result decisions, privacy, accessibility or grievance redress.

Visual 64 - Final rapid-recall board

Trap	Correct recall
SPSC appointment/removal	Governor / President
Joint suspension	President
SPSC suspension after reference	Governor
term start	entering office
UPSC/SPSC age	65 / 62
near-half rule	ten years government office
advice	advisory/directory
rejected advice	Article 323 reasons memorandum
reservation exception	manner under 16(4)/335
recommendation	no automatic appointment
court	legality review, not merit appeal
2024 exam law	expressly covers UPSC

Mains verdict bank

- **Independence:** The Constitution secures the Commission against easy removal; reform must secure it against weak appointments, capacity dependence and distrust.
- **Advisory role:** Article 320 supplies reasoned expertise; Article 323 converts rejection into democratic accountability.
- **Federal design:** The SPSC is State-rooted in appointment and reporting but Union-insulated in removal.
- **Judicial review:** Courts preserve lawful merit by reviewing the rules, not by becoming the selectors.
- **Integrity:** Penalties punish a breached examination; secure systems, stable rules and remedy preserve the institution.
- **Lateral recruitment:** Specialist entry can supplement merit only when post-specific law, equality, reservation and transparency are stricter than patronage.

Final limitations to write explicitly

1. No direct standalone PSC PYQ was verified in the audited 2018-2026 routing ledgers.
2. No current officeholder, vacancy, candidate-count or calendar fact is frozen.
3. No PSC appointment collegium is presented as enacted law.
4. Joint Commission is not reduced to either “purely statutory” or “automatically constitutional”.
5. Article 317 processes are kept differentiated.
6. Article 320(4) is not converted into a blanket exclusion of reservation matters.
7. The 2024 consultation amendment is not presented as a universal lateral-entry exemption.
8. Public Examinations Act coverage is verified for UPSC, but its existence is not treated as proof that every exam risk has been eliminated.